

LATHAM & WATKINS LLP

August 10, 2026

BY EDIS

The Honorable Lisa R. Barton
Secretary to the Commission
U.S. International Trade Commission
500 E Street, S.W., Room 112
Washington, DC 20436

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Re: ***Certain Dynamic Random Access Memory (DRAM) Devices, Products Containing the Same, and Components Thereof (III)***

Dear Secretary Barton:

Enclosed for filing on behalf of Netlist, Inc. (“Netlist” or “Complainant”) are documents in support of Netlist’s request that the Commission commence an investigation pursuant to Section 337 of the Tariff Act of 1930, as amended. Pursuant to the Commission Rules of Practice and Procedure, a request for confidential treatment of Confidential Exhibits 12, 60-62, 94-97, 101, 108, CC-18, CC-19, CC-24, CC-38, CC-39, CC-53, CC-54, CC-78, and CC-79 is being transmitted with this filing. In accordance with the Commission’s Rules enclosed are the following:

1. one electronic copy of Netlist’s verified Complaint and Statement of Public Interest (Rules 210.8(a)(1)(i) and 210.8(b));
2. one electronic copy of each of the accompanying non-confidential exhibits to the Complaint (Rules 210.4(f) and 210.8(a));
3. electronic copies of the accompanying confidential exhibits to the Complaint (Rules 201.6(c), 210.4(f) and 210.8(a));
4. electronic copies of U.S. Patent Nos. 10,025,731 (“731 Patent”); 10,217,523 (“523 Patent”); 12,373,366 (“366 Patent”); and 12,675,407 (“407 Patent”) (collectively the “Asserted Patents”) (Rule 210.12(a)(9)(ii));¹

¹ Certified copies of the Asserted Patents, their respective prosecution histories, and their respective assignment records have been ordered and will be filed with the Commission once they are received, pursuant to Commission Rule 210.12(a)(9)(ii).

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5. electronic copies of the assignments for the '731 Patent (Exhibit 5), the '523 Patent (Exhibit 6), the '366 Patent (Exhibit 7), and the '407 Patent (Exhibit 8) (Rule 210.12(c)(1));
6. electronic copies of the prosecution histories of the '731 Patent (Appendix A), the '523 Patent (Appendix B), the '366 Patent (Appendix C), and the '407 Patent (Appendix D) (Rule 210.12(c)(1));
7. electronic copies of the prosecution histories of the priority applications of the '731 Patent (Appendix E), the '523 Patent (Appendix F), the '366 Patent (Appendix G), and the '407 Patent (Appendix H) (Rule 210.12(c)(2)); and
8. a letter and certification pursuant to commission Rules 201.6(b) and 210.5(d) requesting confidential treatment of Confidential Exhibits 12, 60-62, 94-97, 101, 108, CC-18, CC-19, CC-24, CC-38, CC-39, CC-53, CC-54, CC-78, and CC-79.

Thank you for your attention to this matter.

Respectfully submitted,

/s/ Kevin C. Wheeler
Kevin C. Wheeler
of LATHAM & WATKINS LLP

Counsel for Complainant Netlist, Inc.

Enclosures